01

OFFICIAL LIVE-STATUS DECISION — CHECKED THROUGH 21 AUGUST 2026

CONTEXT + EXACT CORE

Current Part III analysis must be date-bounded: Electoral Bonds protects political-funding information, Davinder Singh permits evidence-based Scheduled Caste sub-classification, Property Owners preserves original Article 31C, DPDP commencement is phased, and BNS section 152 remains under a notified constitutional challenge without a located final merits decision.

MECHANISM / ARGUMENT

Later compliance proceedings did not alter its Article 19(1)(a) information holding; a bounded official-domain search located no later altering review/clarification through 21 August 2026.

CONSEQUENCE / CONTRAST

Later compliance proceedings did not alter its Article 19(1)(a) information holding; a bounded official-domain search located no later altering review/clarification through 21 August 2026.

UPSC TRAP / ANSWER USE

Later compliance proceedings did not alter its Article 19(1)(a) information holding; a bounded official-domain search located no later altering review/clarification through 21 August 2026.

ANSWER LINE: **Current Part III analysis must be date-bounded: Electoral Bonds protects political-funding information, Davinder Singh permits evidence-based Scheduled Caste sub-classification, Property Owners preserves original Article 31C, DPDP commencement is phased, and BNS section 152 remains under a notified constitutional challenge without a located final merits decision.**

02

PART III AS AN ARCHITECTURE: RIGHTS, LIMITS, REMEDIES AND SPECIAL CONTROLS

CONTEXT + EXACT CORE

Part III is a constitutional operating system, not a bare catalogue: Articles 12-13 identify bound power and invalid law, Articles 14-30 secure six present rights, Article 32 supplies the remedy, and Articles 31A-35 plus 358-359 control exceptional protection or enforcement.

MECHANISM / ARGUMENT

The correct exam method is therefore

CONSEQUENCE / CONTRAST

The correct exam method is therefore

UPSC TRAP / ANSWER USE

Part III is a constitutional operating system, not a bare catalogue: Articles 12-13 identify bound power and invalid law, Articles 14-30 secure six present rights, Article 32 supplies the remedy, and Articles 31A-35 plus 358-359 control exceptional protection or enforcement.

ANSWER LINE: **Part III is a constitutional operating system, not a bare catalogue: Articles 12-13 identify bound power and invalid law, Articles 14-30 secure six present rights, Article 32 supplies the remedy, and Articles 31A-35 plus 358-359 control exceptional protection or enforcement.**

03

BENEFICIARIES, VERTICAL AND HORIZONTAL REACH, POSITIVE AND NEGATIVE DUTIES

CONTEXT + EXACT CORE

Vertical: the usual model is individual versus State.

MECHANISM / ARGUMENT

Express horizontal reach: Article 15(2) covers denial of access to specified public-facing places; Article 17 abolishes untouchability; Articles 23-24 prohibit exploitation by private actors too.

CONSEQUENCE / CONTRAST

Modern rights adjudication therefore asks not only, "Did the State interfere?" but also, "Did the State reasonably protect the conditions in which the right can be exercised?"

UPSC TRAP / ANSWER USE

Do not convert it into the loose proposition that every Fundamental Right now applies fully against every private person.

ANSWER LINE: **Fundamental-right analysis must separate beneficiary from respondent: some guarantees belong only to citizens, many protect every person, and Articles 15(2), 17, 23 and 24 directly reach specified private conduct while positive duties may require State protection.**

04

QUALIFIED RIGHTS, REASONABLE RESTRICTIONS AND PROPORTIONALITY

CONTEXT + EXACT CORE

Articles 25-26 are expressly subject to public order, morality and health; Article 25 is also subject to other Fundamental Rights.

MECHANISM / ARGUMENT

Legality: Is the restriction authorised by valid law rather than unsupported executive preference?

CONSEQUENCE / CONTRAST

Necessity: Is a less rights-restrictive but equally effective measure available?

UPSC TRAP / ANSWER USE

Indian Fundamental Rights are qualified but not defeasible at executive will: every restriction must rest on valid law, fit the exact constitutional ground, pursue a legitimate aim and remain rational, necessary, balanced and procedurally safeguarded.

ANSWER LINE: **Indian Fundamental Rights are qualified but not defeasible at executive will: every restriction must rest on valid law, fit the exact constitutional ground, pursue a legitimate aim and remain rational, necessary, balanced and procedurally safeguarded.**

05

ARTICLE 12 - THE STATE AND THE INSTRUMENTALITY INQUIRY

CONTEXT + EXACT CORE

!Article 12 begins with express bodies and then asks whether an 'other authority' is functionally an instrumentality or agency of government.

MECHANISM / ARGUMENT

The later approach in Pradeep Kumar Biswas asks whether the body is financially, functionally and administratively dominated by or under government control of a pervasive character.

CONSEQUENCE / CONTRAST

Therefore, "not State under Article 12" does not always mean "immune from writ jurisdiction."

UPSC TRAP / ANSWER USE

the cumulative factual relationship rather than the body's corporate form.

ANSWER LINE: **Article 12 looks beyond legal form to governmental domination: an entity may be State when its financial, functional and administrative relationship reveals pervasive governmental control, while Article 226 may separately reach a non-State body performing a public duty.**

06

ARTICLE 13 - LAW, JUDICIAL REVIEW AND THE VOIDNESS DOCTRINES

CONTEXT + EXACT CORE

!Article 13 defines law broadly, invalidates inconsistency to its extent, and operates through severability, eclipse, non-waiver and carefully used prospective overruling.

MECHANISM / ARGUMENT

Article 13 converts rights into judicially enforceable limits by defining law broadly and using severability, eclipse and non-waiver, while constitutional amendments are reviewed through Article 368 and the basic-structure boundary.

CONSEQUENCE / CONTRAST

Kesavananda Bharati displaced Golaknath's amendment theory but retained the Indian court's capacity to calibrate temporal effect where justified.

UPSC TRAP / ANSWER USE

Article 13(2): the State shall not make law taking away or abridging Fundamental Rights; contravening law is void to the extent of contravention.

ANSWER LINE: **Article 13 converts rights into judicially enforceable limits by defining law broadly and using severability, eclipse and non-waiver, while constitutional amendments are reviewed through Article 368 and the basic-structure boundary.**

07

ARTICLE 14 - TWIN EQUALITY, CLASSIFICATION AND ANTI-ARBITRARINESS

CONTEXT + EXACT CORE

Article 14 - twin equality, classification and anti-arbitrariness: classification tests the structure of differentiation; arbitrariness tests irrational, capricious or disproportionate State power even where a neat class is difficult to identify.

MECHANISM / ARGUMENT

Article 14 combines equality before law with equal protection: it permits reasonable classification only through intelligible differentia and rational nexus, and independently invalidates arbitrary State action.

CONSEQUENCE / CONTRAST

!Articles 14-18 form a code against privilege, exclusion, caste hierarchy and artificial rank, while permitting carefully designed substantive equality.

UPSC TRAP / ANSWER USE

It forbids class legislation, not all classification.

ANSWER LINE: **Article 14 combines equality before law with equal protection: it permits reasonable classification only through intelligible differentia and rational nexus, and independently invalidates arbitrary State action.**

08

ARTICLES 15 AND 16 - NON-DISCRIMINATION AND PROTECTIVE DISCRIMINATION

CONTEXT + EXACT CORE

Articles 15 and 16 - non-discrimination and protective discrimination: CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

MECHANISM / ARGUMENT

Articles 15 and 16 move equality from non-discrimination to substantive opportunity by prohibiting exact grounds yet authorising carefully targeted special provisions and reservation through distinct enabling clauses.

CONSEQUENCE / CONTRAST

Article 15(1) bars the State from discriminating against a citizen on grounds only of religion, race, caste, sex, place of birth or any of them.

UPSC TRAP / ANSWER USE

Articles 15(4) and 16(4) are not grudging exceptions to equality.

ANSWER LINE: **Articles 15 and 16 move equality from non-discrimination to substantive opportunity by prohibiting exact grounds yet authorising carefully targeted special provisions and reservation through distinct enabling clauses.**

09

RESERVATION DOCTRINE: CREAMY LAYER, CEILING, PROMOTION, EFFICIENCY, EWS AND SC SUB-CLASSIFICATION

CONTEXT + EXACT CORE

Reservation is a technique of substantive equality, but its design remains evidence-based, reviewable and attentive to creamy-layer exclusion, representation, promotion conditions, backlog treatment, EWS text and administrative efficiency.

MECHANISM / ARGUMENT

Efficiency is not a veto owned by the unreserved category.

CONSEQUENCE / CONTRAST

Chinnaiah and held that States may sub-classify Scheduled Castes for distributing reservation benefits more effectively.

UPSC TRAP / ANSWER USE

held that Article 16(4) did not authorise reservation in promotion; and

ANSWER LINE: **Reservation is a technique of substantive equality, but its design remains evidence-based, reviewable and attentive to creamy-layer exclusion, representation, promotion conditions, backlog treatment, EWS text and administrative efficiency.**

10

ARTICLES 17 AND 18 - ANTI-UNTOUCHABILITY AND ANTI-TITLE GUARANTEES

CONTEXT + EXACT CORE

Articles 17 and 18 attack inherited civic hierarchy horizontally and symbolically: untouchability is abolished and punishable, while titles are prohibited without invalidating military, academic or properly used national distinctions.

MECHANISM / ARGUMENT

Untouchability is abolished; its practice in any form is forbidden; enforcement of any disability arising from it is an offence punishable by law.

CONSEQUENCE / CONTRAST

Untouchability is abolished; its practice in any form is forbidden; enforcement of any disability arising from it is an offence punishable by law.

UPSC TRAP / ANSWER USE

"Untouchability" is understood in its historical caste-based constitutional sense, not every form of social avoidance.

ANSWER LINE: **Articles 17 and 18 attack inherited civic hierarchy horizontally and symbolically: untouchability is abolished and punishable, while titles are prohibited without invalidating military, academic or properly used national distinctions.**

11

ARTICLE 19 - SIX FREEDOMS AND EXACT RESTRICTION GROUNDS

CONTEXT + EXACT CORE

Article 19 protects six citizen freedoms through clause-specific discipline: the State must identify the exact restriction clause and closed ground, after which reasonableness and proportionality test the means.

MECHANISM / ARGUMENT

Article 19 protects six citizen freedoms through clause-specific discipline: the State must identify the exact restriction clause and closed ground, after which reasonableness and proportionality test the means.

CONSEQUENCE / CONTRAST

!Each Article 19 freedom has a matching restriction clause.

UPSC TRAP / ANSWER USE

The grounds are not interchangeable.

ANSWER LINE: **Article 19 protects six citizen freedoms through clause-specific discipline: the State must identify the exact restriction clause and closed ground, after which reasonableness and proportionality test the means.**

12

SPEECH, PRESS, RIGHT TO KNOW AND THE FIRST AMENDMENT SETTLEMENT

CONTEXT + EXACT CORE

There is no separate press Article.

MECHANISM / ARGUMENT

"Sovereignty and integrity of India" came through the Sixteenth Amendment, 1963, not the First Amendment.

CONSEQUENCE / CONTRAST

Freedom of the press is derived from Article 19(1)(a).

UPSC TRAP / ANSWER USE

Do not quote them as if present Article 19(2) lacked "public order."

ANSWER LINE: **!Free-speech doctrine moved from the 1950 press cases to reasonableness, incitement, digital safeguards and a differently drafted successor criminal provision.**

13

SEDITION LINEAGE, BNS SECTION 152 AND SPEECH-INCITEMENT DISCIPLINE

CONTEXT + EXACT CORE

[CURRENT] BNS section 152 targets purposeful/knowing acts through words, signs, visible representation, electronic communication, financial means or otherwise that

MECHANISM / ARGUMENT

The Supreme Court upheld IPC section 124A only by reading it down to speech involving incitement to violence or a tendency/intention to create public disorder.

CONSEQUENCE / CONTRAST

The case did not strike down section 124A.

UPSC TRAP / ANSWER USE

The case did not strike down section 124A.

ANSWER LINE: **The Supreme Court upheld IPC section 124A only by reading it down to speech involving incitement to violence or a tendency/intention to create public disorder.**

14

DIGITAL SPEECH: SHREYA SINGHAL, INTERNET SHUTDOWNS AND CRIMINAL DEFAMATION

CONTEXT + EXACT CORE

Digital speech: Shreya Singhal, internet shutdowns and criminal defamation: [CURRENT] The current criminal provision is BNS section 356, not the repealed IPC sections 499-500.

MECHANISM / ARGUMENT

upheld section 69A blocking power because of its structured safeguards; and

CONSEQUENCE / CONTRAST

A critical answer should still note the chilling effect, criminal-process burden and availability of civil remedies, while accurately stating the binding holding.

UPSC TRAP / ANSWER USE

Trap: Shreya Singhal did not strike down all blocking powers and did not declare the internet itself a Fundamental Right.

ANSWER LINE: **struck down IT Act section 66A for vagueness and overbreadth;**

15

ARTICLE 20 - EX POST FACTO LAW, DOUBLE JEOPARDY AND SELF-INCRIMINATION

CONTEXT + EXACT CORE

Article 20 - ex post facto law, double jeopardy and self-incrimination: 1. the person is accused of an offence;

MECHANISM / ARGUMENT

Article 20 creates three person-protective criminal shields against retrospective penal liability, repeated prosecution-and-punishment for the same offence, and compelled testimonial self-incrimination.

CONSEQUENCE / CONTRAST

!Article 20 contains three criminal-law safeguards and, with Article 21, remains enforceable during an Article 359 order.

UPSC TRAP / ANSWER USE

No person may be convicted for an act that was not an offence when done.

ANSWER LINE: **Article 20 creates three person-protective criminal shields against retrospective penal liability, repeated prosecution-and-punishment for the same offence, and compelled testimonial self-incrimination.**

16

ARTICLE 21 - GOPALAN TO MANEKA: FAIR PROCEDURE AND THE DIGNITY CHARTER

CONTEXT + EXACT CORE

India did not textually replace "procedure established by law" with the American phrase "due process." The exam-safe formulation is that Maneka imported a due-process standard of fairness and non-arbitrariness.

MECHANISM / ARGUMENT

!Article 21 expanded from a narrow procedural guarantee into a dignity charter through Maneka Gandhi and named substantive holdings.

CONSEQUENCE / CONTRAST

Cooper (1970) weakened the silo theory by examining the effect of State action across rights.

UPSC TRAP / ANSWER USE

India did not textually replace "procedure established by law" with the American phrase "due process." The exam-safe formulation is that Maneka imported a due-process standard of fairness and non-arbitrariness.

ANSWER LINE: **Article 21 became a dignity charter when Maneka Gandhi required fair, just and reasonable procedure and linked liberty with Articles 14 and 19, enabling named protections without turning every policy aspiration into an unlimited entitlement.**

17

PRIVACY, PROPORTIONALITY, DNA TESTING AND DATA PROTECTION

CONTEXT + EXACT CORE

A nine-judge Bench held unanimously that privacy is a Fundamental Right protected as an intrinsic part of life and personal liberty under Article 21 and as part of the freedoms guaranteed by Part III.

MECHANISM / ARGUMENT

A nine-judge Bench held unanimously that privacy is a Fundamental Right protected as an intrinsic part of life and personal liberty under Article 21 and as part of the freedoms guaranteed by Part III.

CONSEQUENCE / CONTRAST

protection against arbitrary State surveillance.

UPSC TRAP / ANSWER USE

Courts do not order it as a routine fishing inquiry.

ANSWER LINE: **A nine-judge Bench held unanimously that privacy is a Fundamental Right protected as an intrinsic part of life and personal liberty under Article 21 and as part of the freedoms guaranteed by Part III.**

18

ARTICLE 21A - EDUCATION AS A FUNDAMENTAL RIGHT

CONTEXT + EXACT CORE

Article 21A - education as a Fundamental Right: CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

MECHANISM / ARGUMENT

Article 21A constitutionalises free and compulsory education for children aged six to fourteen, implemented by the RTE Act while preserving the distinct Article 30 position of minority institutions.

CONSEQUENCE / CONTRAST

The Eighty-sixth Amendment inserted Article 21A: the State shall provide free and compulsory education to children aged six to fourteen in the manner determined by law.

UPSC TRAP / ANSWER USE

Answer-use: Article 21A constitutionalises free and compulsory education for children aged six to fourteen, implemented by the RTE Act while preserving the distinct Article 30 position of minority institutions.

ANSWER LINE: **Article 21A constitutionalises free and compulsory education for children aged six to fourteen, implemented by the RTE Act while preserving the distinct Article 30 position of minority institutions.**

19

ARTICLE 22 - ORDINARY ARREST, PREVENTIVE DETENTION AND THE UNENFORCED 44TH AMENDMENT CLAUSE

CONTEXT + EXACT CORE

Article 22 - ordinary arrest, preventive detention and the unenforced 44th Amendment clause: Preventive detention is the rights chapter's deepest structural contradiction: it constitutionalises detention without trial, yet surrounds it with minimum review, communication and representation safeguards.

MECHANISM / ARGUMENT

!Article 22 separates ordinary arrest from preventive detention; importing one branch's safeguards into the other creates predictable errors.

CONSEQUENCE / CONTRAST

!Article 22 separates ordinary arrest from preventive detention; importing one branch's safeguards into the other creates predictable errors.

UPSC TRAP / ANSWER USE

not be denied the right to consult and be defended by a legal practitioner of choice;

ANSWER LINE: **Article 22 separates ordinary arrest from preventive detention: the first carries grounds, counsel and twenty-four-hour production safeguards, while the second follows a distinct regime whose current no-Advisory-Board ceiling remains three months.**

20

ARTICLES 23-24 - EXPLOITATION, FORCED LABOUR AND CHILD LABOUR

CONTEXT + EXACT CORE

Articles 23-24 - exploitation, forced labour and child labour: Article 24's text is narrower than a complete ban on every kind of child work, while the amended statute creates broader prohibitions and defined exceptions.

MECHANISM / ARGUMENT

Article 24's text is narrower than a complete ban on every kind of child work, while the amended statute creates broader prohibitions and defined exceptions.

CONSEQUENCE / CONTRAST

other similar forms of forced labour.

UPSC TRAP / ANSWER USE

Article 23(2) permits compulsory service for public purposes, but the State cannot discriminate in imposing it only on religion, race, caste or class.

ANSWER LINE: **Articles 23-24 constitutionalise labour dignity against State and private exploitation: trafficking, begar (forced unpaid labour), economically compelled forced labour and prohibited child labour attract both rights remedies and statutory enforcement.**

21

ARTICLES 25-28 - CONSCIENCE, DENOMINATION, SECULAR REGULATION AND PRINCIPLED DISTANCE

CONTEXT + EXACT CORE

Indian religious freedom protects conscience and denominational autonomy while permitting public-order, health, morality, secular-regulation and social-reform controls; the governing model is principled distance, not either theocracy or an absolute wall.

MECHANISM / ARGUMENT

!Religious freedom requires four separate questions: individual conscience, denominational autonomy, taxation and institutional religious instruction.

CONSEQUENCE / CONTRAST

A bounded official-source check through 21 August 2026 located no final later decision that this package can securely use; it therefore states only the 2018 majority holding and does not speculate about the review/reference.

UPSC TRAP / ANSWER USE

Indian religious freedom protects conscience and denominational autonomy while permitting public-order, health, morality, secular-regulation and social-reform controls; the governing model is principled distance, not either theocracy or an absolute wall.

ANSWER LINE: **Indian religious freedom protects conscience and denominational autonomy while permitting public-order, health, morality, secular-regulation and social-reform controls; the governing model is principled distance, not either theocracy or an absolute wall.**

22

ARTICLES 29-30 - CULTURAL CONSERVATION AND MINORITY EDUCATIONAL AUTONOMY

CONTEXT + EXACT CORE

Articles 29-30 protect cultural conservation, non-discriminatory admission and minority educational autonomy, but Article 29 is not minority-exclusive and Article 30 protects administration rather than maladministration.

MECHANISM / ARGUMENT

State aid cannot discriminate merely because the institution is minority-managed; and

CONSEQUENCE / CONTRAST

!Article 29 protects sections of citizens and non-discriminatory admission; Article 30 specifically protects religious and linguistic minority institutions.

UPSC TRAP / ANSWER USE

Articles 29-30 protect cultural conservation, non-discriminatory admission and minority educational autonomy, but Article 29 is not minority-exclusive and Article 30 protects administration rather than maladministration.

ANSWER LINE: **Articles 29-30 protect cultural conservation, non-discriminatory admission and minority educational autonomy, but Article 29 is not minority-exclusive and Article 30 protects administration rather than maladministration.**

23

ARTICLE 32 AND THE FIVE WRITS

CONTEXT + EXACT CORE

Article 32 makes the Supreme Court a guaranteed Fundamental-Rights forum, while Article 226 is wider in subject matter and public-duty reach; the correct writ follows the defect—detention, unperformed duty, threatened excess, defective order or unlawful public office.

MECHANISM / ARGUMENT

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

CONSEQUENCE / CONTRAST

!Choose a writ from the defect: detention, unperformed public duty, threatened jurisdictional excess, an illegal order or unlawful occupation of public office.

UPSC TRAP / ANSWER USE

"Supreme Court cannot refuse Article 32" does not mean every petition must receive final relief despite alternate remedy, disputed facts or absence of a Fundamental Right.

ANSWER LINE: **Article 32 makes the Supreme Court a guaranteed Fundamental-Rights forum, while Article 226 is wider in subject matter and public-duty reach; the correct writ follows the defect—detention, unperformed duty, threatened excess, defective order or unlawful public office.**

24

ARTICLES 31A, 31B AND 31C - SAVING PROVISIONS WITHOUT BLANKET IMMUNITY

CONTEXT + EXACT CORE

Articles 31A, 31B and 31C - saving provisions without blanket immunity: It is not a general immunity for every property-related law.

MECHANISM / ARGUMENT

Neither creates a general rights-free zone.

CONSEQUENCE / CONTRAST

The court examines whether the protected law's effect damages rights forming part of basic structure.

UPSC TRAP / ANSWER USE

Articles 31A-31C, 33-35 create defined constitutional controls rather than rights-free zones: their field, purpose and legislative competence remain text-bound and subject to basic-structure review where applicable.

ANSWER LINE: **Articles 31A-31C, 33-35 create defined constitutional controls rather than rights-free zones: their field, purpose and legislative competence remain text-bound and subject to basic-structure review where applicable.**

25

RIGHT TO PROPERTY: ARTICLE 31 TRANSITION TO ARTICLE 300A

CONTEXT + EXACT CORE

Calling property merely a "legal right" is incomplete.

MECHANISM / ARGUMENT

Article 300A now provides: no person shall be deprived of property save by authority of law.

CONSEQUENCE / CONTRAST

Article 31 originally protected property as a Fundamental Right.

UPSC TRAP / ANSWER USE

Article 300A is a constitutional right, though not a Fundamental Right.

ANSWER LINE: **The Forty-fourth Amendment moved property from Part III to the constitutional guarantee in Article 300A.**

26

ARTICLES 33-35 AND MARTIAL LAW

CONTEXT + EXACT CORE

Articles 33-35 and martial law: intelligence/counter-intelligence organisations; and

MECHANISM / ARGUMENT

intelligence/counter-intelligence organisations; and

CONSEQUENCE / CONTRAST

connected telecommunication systems,

UPSC TRAP / ANSWER USE

This power belongs to Parliament, not State legislatures.

ANSWER LINE: **Parliament may determine the extent to which Fundamental Rights are restricted or abrogated for**

27

ARTICLES 358 AND 359 - TWO DIFFERENT EMERGENCY MECHANISMS

CONTEXT + EXACT CORE

protection is tied to law related to the Emergency and the required recital; and

MECHANISM / ARGUMENT

Article 358 automatically displaces Article 19 constraints only during war or external-aggression Emergency within its conditions, whereas Article 359 requires a Presidential order suspending court enforcement of specified rights and can never include Articles 20 or 21.

CONSEQUENCE / CONTRAST

Article 358 automatically displaces Article 19 constraints only during war or external-aggression Emergency within its conditions, whereas Article 359 requires a Presidential order suspending court enforcement of specified rights and can never include Articles 20 or 21.

UPSC TRAP / ANSWER USE

Article 358 automatically displaces Article 19 constraints only during war or external-aggression Emergency within its conditions, whereas Article 359 requires a Presidential order suspending court enforcement of specified rights and can never include Articles 20 or 21.

ANSWER LINE: **Article 358 automatically displaces Article 19 constraints only during war or external-aggression Emergency within its conditions, whereas Article 359 requires a Presidential order suspending court enforcement of specified rights and can never include Articles 20 or 21.**

28

ARTICLE 359: THE NON-DEROGABLE ARTICLES 20 AND 21 CORE

CONTEXT + EXACT CORE

Article 359: the non-derogable Articles 20 and 21 core: CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

MECHANISM / ARGUMENT

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

CONSEQUENCE / CONTRAST

The Forty-fourth Amendment also entrenched an Emergency lesson: a Presidential order under Article 359 cannot suspend the right to move a court for enforcement of Articles 20 and 21.

UPSC TRAP / ANSWER USE

A Presidential order under Article 359 cannot suspend the right to move a court for enforcement of Articles 20 and 21.

ANSWER LINE: **A Presidential order under Article 359 cannot suspend the right to move a court for enforcement of Articles 20 and 21.**

29

CURRENT-LAW DASHBOARD - SECURELY VERIFIED POSITIONS ONLY

CONTEXT + EXACT CORE

Current-law dashboard - securely verified positions only: Current Part III analysis must be date-bounded: Electoral Bonds protects political-funding information, Davinder Singh permits evidence-based Scheduled Caste sub-classification, Property Owners preserves original Article 31C, DPDP commencement is phased, and BNS section 152 remains under a notified constitutional challenge without a located final merits decision.

MECHANISM / ARGUMENT

CONTENT CLASSIFICATION: CURRENT-LAW CONTROL

CONSEQUENCE / CONTRAST

CONTENT CLASSIFICATION: CURRENT-LAW CONTROL

UPSC TRAP / ANSWER USE

Answer-use: Current Part III analysis must be date-bounded: Electoral Bonds protects political-funding information, Davinder Singh permits evidence-based Scheduled Caste sub-classification, Property Owners preserves original Article 31C, DPDP commencement is phased, and BNS section 152 remains under a notified constitutional challenge without a located final merits decision.

ANSWER LINE: **Current Part III analysis must be date-bounded: Electoral Bonds protects political-funding information, Davinder Singh permits evidence-based Scheduled Caste sub-classification, Property Owners preserves original Article 31C, DPDP commencement is phased, and BNS section 152 remains under a notified constitutional challenge without a located final merits decision.**

30

GS-II ANSWER ARCHITECTURE AND QUALIFIED CONCLUSIONS

CONTEXT + EXACT CORE

Direct thesis: answer whether the right is absolute, expanding, horizontal, discriminatory or adequately protected.

MECHANISM / ARGUMENT

Speech: Article 19 protects discussion and advocacy through a closed list of reasonable grounds; the modern challenge is often vague criminalisation or unreviewable process rather than absence of doctrine.

CONSEQUENCE / CONTRAST

Direct thesis: answer whether the right is absolute, expanding, horizontal, discriminatory or adequately protected.

UPSC TRAP / ANSWER USE

Speech: Article 19 protects discussion and advocacy through a closed list of reasonable grounds; the modern challenge is often vague criminalisation or unreviewable process rather than absence of doctrine.

ANSWER LINE: **Fundamental Rights are neither absolute liberties nor revocable State gifts: they are transformative, judicially enforceable guarantees whose legitimacy lies in exact text, proportionate limitation, positive protection and a non-derogable rule-of-law core.**

31

EIGHTH-EDITION INTEGRATION: DOCTRINE ROUTING AND PART XVI BOUNDARY

CONTEXT + EXACT CORE

basic/Constitutional-Interpretation-Doctrines.md and their federal application belongs to Topic

MECHANISM / ARGUMENT

lists prepared by law for their own purposes.

CONSEQUENCE / CONTRAST

13; they should not be presented as Article 13 doctrines.

UPSC TRAP / ANSWER USE

13; they should not be presented as Article 13 doctrines.

ANSWER LINE: **Pith and substance, colourable legislation, territorial nexus and repugnancy are primarily**